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(except Section V, which is a statutory request made outside section 1152 and Rule 408)

August 31, 2026

VIA ELECTRONIC MAIL ONLY

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Re: **Opening Demand to Settle as to Accurate Background LLC**
Newanforbi v. Amazon.com Services, LLC, et al. — Alameda County Superior Court, Case No. 26CV201554
Unlawful Use of California Sex Offender Registry Information for Employment (Pen. Code, § 290.46, subd. (j)(2)(E)); FCRA; ICRAA
Screening No. Y94611404 | Search ID No. 496623722 | **Demand: $250,000.00 (Accurate Background only)**

Dear Ms. Stanzick and Mr. Drury:

This is my opening demand to settle as to Accurate Background LLC. It is directed to Accurate Background alone. It does not resolve, and is not offset by, any claim against Amazon.com Services, LLC.

I. WHERE THE CASE STANDS

The Complaint was e-filed July 28, 2026 and accepted July 29 as Case No. 26CV201554, assigned to the Honorable Jamilah Jefferson, Department 520, Hayward Hall of Justice. Both defendants were personally served July 31, 2026 — Accurate Background through CT Corporation System at 11:00 a.m., proof of service executed August 5, 2026. The first-paper filing fee has been paid. Notices of Amount of Punitive Damages Sought under Code of Civil Procedure section 425.115 were filed and accepted August 6, 2026: $250,000.00 as to Amazon and $100,000.00 as to Accurate Background. A case management conference is set for January 6, 2027. Accurate Background's responsive pleading is due today, and by separate letter of today's date I have offered to extend that date to September 14, 2026.

The Complaint pleads seven causes of action. All but one of them run against your client: violation of Penal Code section 290.46, subdivision (j); violation of the Fair Credit Reporting Act, 15 U.S.C. section 1681 *et seq.*; violation of the Investigative Consumer Reporting Agencies Act, Civil Code section 1786 *et seq.*; invasion of privacy under article I, section 1 of the California Constitution; unfair competition under Business and Professions Code section 17200; and intentional infliction of emotional distress. Only the Fair Chance Act count is pleaded against Amazon alone.

II. WHAT ACCURATE BACKGROUND DID, AND WHAT IT NEVER DID

The following is documented in writing, in my possession, and in your client's own systems.

- **July 3, 2026, 2:09 p.m.** Amazon extended a conditional offer for the position of XL Warehouse Associate at its Fremont fulfillment center, 44051 Osgood Road — $21.50 to $24.00 per hour, expressly conditioned on "successful completion of your background check," with paid training locked in for July 28–29 and August 4–5, 2026.
- **July 7, 2026, 9:20 a.m.** I completed the on-site pre-hire appointment. Amazon's checklist showed the drug test and Form I-9 complete and the background check pending.
- **July 7, 2026, 9:22 a.m.** Two minutes later, Accurate Background texted me from shortcode 45996: "Amazon has requested a background check on your behalf through Accurate Background."
- **July 7, 2026.** Accurate Background e-mailed a "Notification of Electronic Communication" identifying itself as "a consumer reporting agency" retained to complete screening Y94611404, and — separately, the same day — an "Other Information Needed for Screening Request" under search ID No. 496623722, asking me to telephone and confirm my Social Security number, prior names, address history, and date of birth as "an

urgent matter," warning that a failure to respond promptly "will result in delays in processing your screening."

- **July 8, 2026.** Amazon told me by text that at this site background checks "are usually returned 5 days after they are submitted."
- **July 12 and July 17, 2026.** Amazon twice wrote to apologize for the delay, the second time attributing it to "a third-party vendor" — your client.
- **July 27, 2026, 3:23 p.m.** Twenty days after submission, Amazon's checklist still read "Pending," and the confirmed training shift had been replaced with "You do not have a shift selected — Please select a new shift." The specific position I had been offered was gone, one day before training was to begin.
- **To this day.** Accurate Background has never sent me a completed report, a pre-adverse action notice, an adverse action notice, or any statement of what its screening found.

That last point is the one I would ask you to sit with. Your client took the assignment and, within two hours, sent an urgent demand that I personally confirm my identifiers — the step a screening takes when something has matched a name and requires manual confirmation before the file can close. It then held the file open for more than four times its client's stated turnaround, through the loss of the position, and closed the loop with nothing at all. I am not asking you to accept my inference about what it found. I am telling you that the silence is itself a claim, and that Section V below asks for the document that will settle the question either way.

III. WHY THIS IS ACCURATE BACKGROUND'S EXPOSURE, NOT ONLY AMAZON'S

Your client's likely first instinct is that the employer makes the hiring decision and the vendor merely reports. That answer does not reach these claims.

- **ICRAA (Civ. Code, § 1786 *et seq.*).** Accurate Background is an investigative consumer reporting agency and the statute regulates it directly, not the employer. Section 1786.50 makes it liable for actual damages or $10,000, whichever is greater, together with costs and reasonable attorney's fees, and for punitive damages where the violation is grossly negligent or willful.
- **FCRA (15 U.S.C. § 1681b(b)(1)).** A consumer reporting agency may furnish a report for employment purposes only after obtaining the user's certification that the information will not be used in violation of any applicable federal or state law. In California, registry information cannot lawfully be used for employment at all. A certification to the contrary

is one your client had to obtain, and had to have procedures to obtain honestly. Section 1681n carries statutory damages of $100 to $1,000 per violation or actual damages, plus punitive damages and fees, for a willful violation; section 1681o carries actual damages and fees for a negligent one.

- **Penal Code section 290.46, subdivision (j)(2)(E).** The prohibition is categorical and it is written to reach *use*, not merely employment. Subdivision (j)(4)(A) makes the user liable for actual damages, an amount up to three times actual damages and not less than $250, attorney's fees, and exemplary damages or a civil penalty not exceeding $25,000. Nothing in the statute exempts the vendor that performs the search and transmits the result.
- **Article I, section 1, and Business and Professions Code section 17200.** The privacy claim runs against whoever intruded. The unfair competition claim carries restitution under section 17203 and injunctive relief — and for a national screening company, the injunction is the part that should concern your client more than the payment.

IV. LERMA, ADDRESSED DIRECTLY

I am not going to make you raise *Lerma* for me. My Complaint pleads it at paragraphs 31 through 34, and I have the full docket. On May 26, 2023, Judge Slaughter dismissed the Megan's Law claim and the derivative FCRA claim (Dkt. 36) because Accurate Background's own report — Dkt. 23-2, Search IDs 250459977-79 — showed that its National Sex Offender Database search returned "no record found" and that the disqualifying information had come from ordinary criminal court records. I do not contend that Amazon or your client settled that claim. They did not. Only a Fair Chance Act claim against Amazon survived to the September 2023 settlement.

Three things distinguish this case, and I would price them before I priced a demurrer:

- **This is a state-court action.** The *Lerma* plaintiff's UCL claim failed for want of federal equitable standing under *Sonner v. Premier Nutrition Corp.* (9th Cir. 2020) 971 F.3d 834 — a federal doctrine with no application in the Alameda County Superior Court.
- **The ICRAA defense that worked in *Lerma* is not available here.** That claim fell to a seven-year lookback defense keyed to a decade-old conviction. My claim does not rest on a stale conviction. My criminal-record searches come back clear. The only thing about me that a screening surfaces is registry status, to which no lookback period applies and which section 290.46, subdivision (j)(2)(E), bars from employment use categorically.
- ***Lerma* turned on what the report actually said.** So will this case. In *Lerma* your client produced the report and won on it. Here, twenty days of silence ended with no report to me

at all. If the file shows a clean registry search and an unrelated explanation for the delay, you are holding the document that ends this case, and I would rather learn that in September than at summary judgment. If it shows what the pattern in my other matters shows, your client's position is materially worse than it was in *Lerma*.

V. REQUEST FOR MY FILE — A STATUTORY REQUEST, NOT A SETTLEMENT TERM

This section is not an offer of compromise. It is made outside Evidence Code section 1152 and Federal Rule of Evidence 408 and it stands whether or not this case settles. Pursuant to Civil Code sections 1786.10 and 1786.22 and 15 U.S.C. section 1681g, I request full disclosure of my file, to include:

- The complete contents of the file maintained on me, including screening Y94611404 and search ID No. 496623722, in whatever form maintained.
- Every search performed and the result of each, identified by search type — including any sex offender registry, Megan's Law website, or national sex offender database search — together with the date each was run and the disposition of each.
- The sources of the information, and the identity of each person or entity to whom any report, result, status, flag, or recommendation concerning me was furnished, and the date of each.
- The status the file carried when it was closed or abandoned, and any internal flag, hold, escalation, or adjudication code applied to it.
- To the extent maintained in or with the file, the certification obtained from Amazon under 15 U.S.C. section 1681b(b)(1).

Please treat this request as made today and respond within the time the statutes allow. I will provide whatever proper identification your disclosure procedures require; tell me what you need and I will send it the same day.

VI. THE DEMAND

Settlement payment: $250,000.00 (Two Hundred Fifty Thousand U.S. Dollars), Accurate Background LLC only, inclusive of all damages, statutory penalties, costs, and fees asserted against Accurate Background in this action.

- Payable by check or electronic transfer; payee details and payment instructions to follow upon acceptance.

- Full file disclosure as set out in Section V, which is owed regardless of settlement and which I ask be produced within fifteen days.
- Written confirmation that Accurate Background has issued binding guidance to its personnel, and configured the screening products it sells for California positions, so that California Sex Offender Registry information is not searched, reported, flagged, escalated, or otherwise used, directly or indirectly, in connection with any employment screening; and that its clients are notified accordingly.
- Deletion or permanent suppression of any registry-derived entry in my file, with written confirmation of what was deleted and when.
- Confidentiality of the settlement amount only. The fact of settlement and the non-monetary terms may be disclosed. I will not agree to a non-disparagement clause, and I will not sign a release broader than the claims arising from the July 2026 screening.
- The release runs to Accurate Background LLC and its officers, employees, and affiliates only. It does not extend to Amazon.com Services, LLC, and my claims against Amazon are expressly preserved.

VII. HOW I GET TO THE NUMBER

I would rather show you the arithmetic, including the parts that are not in my favor, than have you assume the figure is arbitrary.

- **Lost earnings are modest and I will not inflate them.** The position was seasonal and part-time — 19 hours per week at $21.50 to $24.00 per hour, roughly $408.50 per week at the bottom of the range. Wage loss is not what drives this claim and I do not pretend it is.
- **Penal Code section 290.46, subdivision (j)(4)(A):** actual damages, an amount up to three times actual damages and not less than $250, attorney's fees, and exemplary damages or a civil penalty up to $25,000.
- **ICRAA, Civil Code section 1786.50:** actual damages or $10,000, whichever is greater, plus costs and fees, and punitive damages for a grossly negligent or willful violation.
- **FCRA, 15 U.S.C. sections 1681n and 1681o:** statutory damages of $100 to $1,000 per violation or actual damages, plus punitive damages and fees for willfulness; actual damages and fees for negligence.
- **General damages.** This is the sixth time in this portfolio that a registry-keyed screening has cost me a position. The cumulative effect of that is the substance of the harm here, and it is what a jury will be asked to value.

- **Punitive exposure.** The section 425.115 notice as to Accurate Background is $100,000. That figure was set for the purpose of the statutory notice and reflects the different financial-condition showing required of a privately held company; it governs what may be taken on a default and is not a valuation of the claim.
- **The cost of defending it.** Every principal claim against your client carries fee shifting. In *Lerma*, Accurate Background briefed a motion to dismiss, a request for judicial notice, and a reply, and then sat through a year of scheduling before the case resolved. That was the cheap version, in a case your client won on the pleadings.

$250,000.00 is an opening figure. I say that plainly rather than pretending otherwise. It is not a number I expect to be paid on the first exchange, and I will negotiate in good faith against a serious counter-offer. What I will not do is negotiate against silence.

VIII. RESPONSE

Please respond in writing to bnn.cdl@gmail.com on or before **5:00 p.m. Pacific Time on September 11, 2026** — three days before the extended responsive-pleading date — with an acceptance, a good-faith counter-offer, or a request to schedule a call. I am available by telephone at any time, and if it would move matters forward I am willing to consider an early mediation.

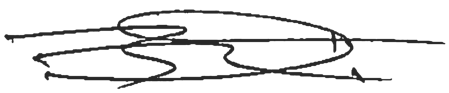
Settlement discussions do not extend any deadline. The only extension on offer is the fourteen-day extension in my separate letter of today's date, which must be accepted today. Amazon's responsive-pleading date is unaffected by this letter and has not been extended.

IX. PROTECTION AND RESERVATION OF RIGHTS

Except for Section V, this letter is offered in compromise of a disputed claim and is inadmissible to prove liability under Evidence Code section 1152 and Federal Rule of Evidence 408. Nothing in it limits my right to introduce the underlying documentary evidence at trial. Nothing in it waives, releases, or limits any claim, right, or remedy, all of which are expressly reserved. This letter is not an offer to settle for any amount less than that stated, nor an admission of fact, law, or comparative fault.

I look forward to hearing from you.

Very truly yours,



Brendan Ngehsi Newanforbi
Plaintiff, In Pro Per

Method of delivery: Electronic mail only.
cc (by e-mail): jstanzick@seyfarth.com; jdrury@seyfarth.com; file (Newanforbi v. Amazon.com Services, LLC, et al., Alameda Sup. Ct. No. 26CV201554)